

Naresh Mirajkar v. Maharashtra

Facts

- An allegation was made against Mr. Thackersey that he had obtained licenses for the import of art silk yarn on the condition that it be sold to the handloom weavers, yet it was sold on the black market to realize higher profits.
 - *The Blitz* weekly published a piece on these allegations, against which a suit for defamation was filed on the original side by Mr. Thackersey against Mr. Karanjia, the editor of *Blitz*.
 - During the course of the trial, one of the witnesses, Mr. Goda, submitted that the court should protect him against his evidence being reported in the press, since the publication would cause substantial loss in business.
 - Justice Tarkunde of the Bombay High Court directed that the reporters of *Blitz* should not publish reports of Mr. Goda's evidence in the weekly.
 - However, it was contended that no witness should claim protection from publicity on the grounds that the evidence might adversely affect his business. Therefore, Mr. Karanjia challenged the order made orally on the grounds that it violates the fundamental principle of administration of justice, which is that it must be open to the public, absent certain exceptions.
 - Unfortunately, Justice Tarkunde rejected Mr. Karanjia's contentions and stated that he had already made an oral order forbidding the publication and that no written order was necessary. He expected that this oral order should be obeyed.
 - The petitioner was aggrieved by the oral order passed by Justice Tarkunde and moved the Bombay High Court in a writ petition under Article 226 of the Constitution. The petition was, however, dismissed by a Division Bench of the High Court on the ground that the impugned order was a judicial order and was not amenable to a writ under Article 226.
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Arguments

- The impugned order was challenged on various grounds:
 - It is urged that the fundamental rights of the citizens under Article 19, Clause (1) are absolute, except to the extent restricted by Clauses (2) to (6).
 - Therefore, it is doubtful whether even the Indian legislature has the power to ban the publication of faithful reports of proceedings.
 - A restriction thus imposed in the interest of a witness cannot be justified under Article 19(2).
- Conversely, it was submitted that the impugned order was passed by the learned judge in the exercise of general and inherent powers, and he was justified in making such an order since, in his opinion, the excessive publicity would have caused annoyance to the witness and might have led to the failure of justice. Therefore, in the interest of the administration of justice, such publication should be banned under Article 19(2).
- Article 32 has a large field and is itself a fundamental right. Therefore, once it is shown that the impugned order has contravened fundamental rights under Article 19, the petitioner is entitled to move this court under Article 32:

- This power to issue writs is a very wide power and is not limited only to the five writs mentioned therein, but also extends to directions or orders in the nature of the writs specified.
 - The right to move this court is not limited to actions of the executive or legislature. For this, Mr. Setalvad referred to fundamental rights under Articles 17, 23, and 24, where even if a private person (such as a shopkeeper) purports to enforce untouchability against a Harijan citizen, such citizen is entitled to move the court under Article 32.
 - In regard to judicial orders, Mr. Setalvad argues that the orders cannot claim immunity from being challenged under Article 32 since certain articles are directly and clearly framed in respect of judicial conduct—for instance, articles that refer to protection in respect of conviction for offences, protection of life and personal liberty, and protection against arrest and detention.
 - Conversely, it was argued by the learned Attorney General that in determining the scope and width of fundamental rights, it is necessary to bear in mind the definition prescribed by Article 12. The reference to the Government and Parliament of India and the Government and Legislature of States specifically excludes the judiciary.
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Position of the Court

- On these facts, the following question arises for the Court's discussion: > *Whether a judicial order passed by a High Court prohibiting the publication in newspapers of evidence given by a witness is amenable to be corrected by a writ of certiorari.*
- This question has two facets:
 1. Whether the impugned order violates fundamental rights under Article 19.
 2. If so, whether it is amenable to the writ jurisdiction of this court under Article 32.
- While the universally accepted proposition is in favor of open trials, this rule also admits of certain exceptions. We cannot overlook the fact that the primary function of the judiciary is to do justice, and therefore certain situations make it necessary for the court to hold a trial *in camera*:
 - If the purpose of finding the truth in that case would be retarded or defeated if witnesses are required to give evidence to public gaze, it shall be available within its inherent power to hold that the trial must be conducted *in camera*, either partly or fully.
 - Therefore, the High Court in this case had an inherent jurisdiction to hold the trial *in camera* if the ends of justice clearly and necessarily required the adoption of such a course.
 - The administration of justice is the primary work that is done in courts, and if there is a conflict between the claims of the administration of justice and those of a public trial, public trial must yield to the administration of justice.
- It is singularly inappropriate to assume that a judicial decision pronounced by a judge exercising competent jurisdiction can affect the fundamental rights of citizens under Article 19. Just as an order passed on the merits of the dispute can be challenged only in appeal, similarly, the

impugned order can be challenged in appeal under Article 136, but cannot be challenged under Article 32.

- The impugned order was directly concerned with giving such protection to the witness as was thought necessary to obtain true evidence. *A.K. Gopalan* already prescribes that to consider the validity of a preventive detention order, one must consider only the direct effect of the legislation and not what will be the result of the detention (otherwise valid) on the detainee's life. In this case also, the infringement of Article 19 *in arguendo* is only incidental, and therefore the incidental consequence does not introduce constitutional infirmity.
- It is argued that in *Budhan Choudhry*, the question of whether the exercise of judicial discretion can attract the jurisdiction of the Supreme Court under Article 32 was only incidentally considered; the scope of jurisdiction in respect of writs against orders passed by the High Court could not have been examined, since the matter had come to the court in appeal under Article 132 and not under writ jurisdiction.
- Even in *Prem Chand Garg*, the main controversy was around the question as to whether Article 145 conferred powers on this court to make rules inconsistent with the provisions inscribed in Part III. The petition was made not to challenge the order, but to challenge the validity of the rules under which the order was made. Once the rule was struck down as being invalid, the order passed had to be vacated. Therefore, the decision cannot be pressed into service in favor of the petitioner's cause.
- In one sense, the order that has been made herein is an order *inter se* parties, but it also binds strangers, such as the editors of certain newspapers. In such a case, third parties may challenge the order by taking appropriate proceedings in appeal under Article 136. It would not, however, be open to invoke jurisdiction under Article 32 and contend that a writ of *certiorari* should be issued in respect of it.
- The High Court is a superior court of record and under Article 215 shall have all the powers of such a court of record, including the power to punish for contempt.
- The order in this case is passed by a Superior Court of Record in the exercise of inherent powers; therefore, the question of validity or propriety of the order cannot be canvassed in writ proceedings taken out by the petitioners under Article 32 for the issue of a writ of *certiorari*.
- English case law also indicates that judicial orders passed by civil courts of plenary jurisdiction would not be amenable to the jurisdiction of any court for the issue of writs of *certiorari*.
- It is impossible to accept the argument that judicial orders passed by a High Court are amenable to be corrected by the exercise of Article 32:
 - The King's prerogative to issue writs is now vested in the High Court of England by statute. However, in India, there is no court of universal jurisdiction in the sense of the High Court of England.
 - The Supreme Court's jurisdiction is prescribed by the Constitution, and so is that of the High Courts. All courts are, in this sense, courts of limited jurisdiction, though High Courts are not courts of inferior jurisdiction.

- The appealability of the order is not a test to determine the superiority of courts, and therefore, merely because an appeal lies to the Supreme Court from the High Court's order, a hierarchy cannot be implied.
 - The Supreme Court has no supervisory jurisdiction over any of the High Courts, and therefore this fails. The High Court in India is given the power to issue a writ. However, in England, an inferior court could never issue the writ; it would therefore be abhorrent to the principle of *certiorari* if a court which can itself issue a writ is made subject to another court's writ jurisdiction.
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The Dissent (Justice Hidayatullah)

- Public hearing of cases before courts is as fundamental to our democracy and system of justice as to any other country. Several statutes have express provisions for trials *in camera*, and where the legislature felt the need for it, it provided for it.
- The publication of case proceedings is coextensive with the issue of whether the public is allowed to be an audience to the trial or not. If the public is an audience to the trial, its proceedings can and must be made public in a democracy. If the matter is already published in an open court, it cannot be prevented from being published outside the court, provided that it is a fair account.
- The order of Mr. Justice Tarkunde imposing suppression of the reporting of the witness was illegal and without jurisdiction. It was not in his power to make such an order.
- The word "State" must obviously include courts; otherwise, courts will be enabled to make rules which take away or abridge fundamental rights. A judicial decision based on an unconstitutional rule is not any better and offends fundamental rights just the same. The exception therefore carved out for *Prem Chand Garg* by the majority fails to identify this correlation. When judged under the Constitution, such an order is still a void order, although it may bind parties unless set aside.
- Similarly, Article 20 is also addressed to judicial officers. So is Article 22. If the High Court, for instance, insisted that the defendant take up a counsel of its choice, the trial would have been vitiated since there is a breach of fundamental rights under Article 22. The remedy in such a case would not have been to wait till the end of the trial and to bring the matter up in appeal on a certificate or under special leave.
- It cannot be claimed as a general proposition that no action of a judge can ever be questioned on the violation of fundamental rights. The judge, in deciding controversies between parties, cannot be completely excluded from the possibility of acting against the Constitution. For instance, a judge cannot exclude a section of the public on grounds of race, religion, or community without offending fundamental rights. In this sense, the distinction created between administrative and judicial capacity is of no value. Even if an appeal lies against an order made in clear violation of fundamental rights, the defect on which the relief can be claimed is the

breach of fundamental rights; therefore, such parties cannot be required to await the moment of appeal to raise the said grounds.

- A suppression of the publication of a report in a case conducted in open court for a reason that has no merit *ex facie* offends the freedom of speech under Article 19. More importantly, since the judge had passed no recorded order, the only effective remedy in this case was to seek the quashing of the order through a writ under Article 32. Justice Hidayatullah is clear that words like “court of record” and “superior/inferior courts” borrowed from English law are of no consequence in reading Articles 32 and 226.
- Article 32 makes no exception in favor of High Courts, and therefore it is erroneous to presume that the High Courts may be excluded. It is also key to notice that the phrase “in the nature of” is not the same as “of the nature of.” The former emphasizes that the essential nature must continue, while the latter is content with mere similarity. Since the former is used in our case, we must see whether the essential nature of the writ is of any help and what assistance can be derived from the language of Articles 32 and 226:
 - *Certiorari* issues to judges and officers of inferior courts, ordering them to certify and send proceedings so that the legality of the proceedings may be examined.
 - *Mandamus* lies for the enforcement of legal rights where there is no other specific remedy, or where the available remedy is not as effective.
 - *Mandamus*, *prohibition*, and *certiorari* are used as a means of controlling inferior courts and those who have legal authority to determine questions of rights *inter se* subjects.
- While there is no real resemblance between the scheme of courts under our Constitution and the courts in England, the analogy of superior and inferior courts is not strictly followed in England itself. Even in England, ecclesiastical courts and the Privy Council are superior courts, but prohibition may be issued to them. In that sense, High Courts are courts of record, but that is of less significance in excluding the High Court from the writ jurisdiction of the Supreme Court.
- Even after the amendment of Article 226, the power conferred on the High Courts is not in every sense a coordinate power. For instance, the right to move the Supreme Court is guaranteed under Article 32, but there is no such guarantee under Article 226.
- The phrase “*notwithstanding anything in Article 32*” shows that the whole of the power must otherwise be with the Supreme Court. While a carve-out for local action is created in favor of the High Court, it is also stated that the power conferred on the High Court is not in derogation of the powers conferred on the Supreme Court—meaning that the entirety of the powers possessed by the Supreme Court is still intact, in spite of the High Court’s ability to exercise similar powers.
- In this sense, the High Court does not possess coordinate powers. The Supreme Court is not only a court of appeal in civil, revenue, and criminal proceedings, but is also empowered to bring before it any judgment, decree, determination, or sentence in any cause or matter passed by any court in the territory of India. Therefore, the power of issuing writs is not shared between the High Court and the Supreme Court as equals; the whole of the power resides with the Supreme Court under this article, while only analogous powers for local enforcement are given to the

High Courts. The subordination, therefore, of the High Courts to the Supreme Court is not only evident, but also logical.

- Even in England, if a High Court judge acts improperly, it is not as if the aggrieved party has no remedy. While a writ cannot be issued because of the absence of substantive rights under English law, the proceeding will in fact be vitiated and the decision voidable. Unlike England, the High Court in India is not immune, since there is a remedy to move the Supreme Court in writs under Article 32 for discriminatory treatment under Articles 14, 15, 19, 20, 21, and 22.